

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
MEHER KALAM,

Plaintiff,

-against-

CITY OF NEW YORK, P.O. MICHAEL KENNEDY
and P.O. MICHAEL SANTOBELLO,

Defendants.

-----X

**AMENDED
VERIFIED
COMPLAINT**

Index No. 723811/2022

Plaintiff, MEHER KALAM, by his attorneys, the Law Office of Michael Dreishpoon,
P.C., complaining of the Defendants, alleges, upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff, MEHER KALAM, was and remains a resident of Queens County, NY.
2. At all times herein mentioned, Defendant, CITY OF NEW YORK, was and remains a domestic municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
3. At all times herein mentioned, Defendant, P.O. MICHAEL KENNEDY was an employee of the New York City Police Department (hereinafter “the NYPD”).
4. At all times herein mentioned, Defendant, P.O. MICHAEL SANTOBELLO, was an employee of the NYPD.

**ALLEGATIONS PERTAINING
TO ALL OF PLAINTIFF’S CLAIMS**

5. At all times relevant and material herein, Defendant, CITY OF NEW YORK, maintained, managed, supervised, and controlled the NYPD as part of, and in conjunction with, its municipal functions.

6. At all times hereinafter mentioned, Defendant, CITY OF NEW YORK, employed and supervised P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO.

7. P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO are graduates of the NYPD's Police Academy.

8. At all times herein mentioned, Defendant, CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO, and to conform their conduct to a standard for the protection of individuals, such as Plaintiff, against the unreasonable risk of harm by conducting themselves in such a manner so as to not intentionally, wantonly and/or negligently injure citizens such as Plaintiff.

9. In addition, at all times relevant hereto, Defendant, CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO in the protection of the rights of Plaintiff under the Constitution of the United States of America.

10. Upon information and belief, at all times hereinafter mentioned, P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO were acting in their capacity as employees, agents, and/or servants of Defendant, CITY OF NEW YORK.

11. At all times hereinafter mentioned, P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO were acting under the color of state law.

12. At all times herein mentioned, Defendants' acts constituted "state action."

13. On Sunday, May 15, 2022, at approximately 2:10 A.M., Plaintiff was walking on the sidewalk near the corner of Queens Blvd. and 55th Road in Elmhurst, NY when an unknown male approached Plaintiff, attempted to mug him, stabbed him in the chest two times, then fled.

14. Plaintiff called 911 and a marked police vehicle with two NYPD officers, P.O.

MICHAEL KENNEDY and P.O. MELISSA MAY, arrived at approximately 2:30 A.M.

15. P.O. MICHAEL KENNEDY asked Plaintiff what happened.

16. Plaintiff told P.O. MICHAEL KENNEDY what happened and requested an ambulance.

17. The nine (9) video files containing the footage from the responding NYPD officers' body worn cameras, which Corporation Counsel exchanged with Plaintiff's counsel on July 17, 2023, fairly and accurately depict the incident which is the subject of this complaint.

18. On May 15, 2022 at approximately 2:32:34, an ambulance arrived on the scene.

19. On May 15, 2022 at approximately 2:32:55, the ambulance driver began walking toward the curb where Plaintiff, P.O. MICHAEL KENNEDY, P.O. MICHAEL SANTOBELLO, and other NYPD officers who had arrived on the scene were standing.

20. On May 15, 2022 at approximately 2:33:01, the ambulance driver reached the curb where Plaintiff, P.O. MICHAEL KENNEDY, P.O. MICHAEL SANTOBELLO, and other NYPD officers were standing.

21. On May 15, 2022 at approximately 2:33:07, P.O. MICHAEL KENNEDY walked behind Plaintiff while Plaintiff was showing some other officers his stab wound.

22. On May 15, 2022 at approximately 2:33:11, P.O. MICHAEL KENNEDY placed both of his hands on Plaintiff's shoulders, placed his leg between Plaintiff's legs, and pulled Plaintiff down to the ground.

23. Several other NYPD officers then assisted P.O. MICHAEL KENNEDY in keeping Plaintiff pinned to the ground.

24. On May 15, 2022 at approximately 2:33:18, P.O. MICHAEL KENNEDY punched Plaintiff in the face while Plaintiff was on the ground.

25. On May 15, 2022 at approximately 2:33 A.M., P.O. MICHAEL SANTOBELLO

punched Plaintiff in the face while Plaintiff was on the ground.

26. Plaintiff was handcuffed, carried into an ambulance and taken to Elmhurst Hospital Center, where he was told that his nose was fractured.

27. Eventually, someone took the handcuffs off.

28. Plaintiff was not arrested.

29. Plaintiff was not charged with committing a crime.

30. Plaintiff stayed in the hospital until Tuesday, May 17, 2022.

31. Defendants' above mentioned actions were done without probable cause, just cause, reasonable grounds, justification or provocation.

32. Defendants' above-mentioned actions placed Plaintiff in imminent fear of unlawful touching.

33. P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO actually touched Plaintiff in a hostile, aggressive, excessive, unlawful, and offensive manner without Plaintiff's consent and with the intention of harmful or offensive bodily contact.

34. As a result of these injuries, Plaintiff suffered, and will continue to suffer, continuous pain, suffering, and anguish.

35. By reason of the foregoing acts by Defendants, Plaintiff was caused emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same.

36. On July 21, 2022, Plaintiff served a Notice of Claim on the City of New York.

37. On August 30, 2022, Plaintiff testified at a hearing pursuant to General Municipal Law § 50-h.

38. More than thirty (30) days have elapsed since the claims upon which this action is

based were presented to Defendant, CITY OF NEW YORK, which has neglected and/or refused to make payment or adjustment thereof.

FIRST CAUSE OF ACTION:
NEGLIGENT HIRING/TRAINING/RETENTION

39. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

40. Defendant, CITY OF NEW YORK, was negligent in its operation, management, hiring, supervision, retention and control of its police department, as well as in the training and conduct of P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO, as well as the other officers involved.

41. As a result of the above-mentioned negligence, NYPD officers, including P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO, apprehended and assaulted Plaintiff.

42. The actions of the defendant officers complained of were part of the custom, practice, usage, regulation, and/or direction of Defendant, CITY OF NEW YORK.

43. Defendant, CITY OF NEW YORK, failed to properly screen, hire, train, supervise, and discipline their employees, including the defendant officers, with regard to their propensity for, inter alia, excessive use of force.

SECOND CAUSE OF ACTION:
FALSE IMPRISONMENT

44. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

45. On May 15, 2022, in the County of Queens, City and State of New York, Defendants, their agents, servants, and/or employees wrongfully and falsely apprehended and

detained Plaintiff without any right or grounds therefor, without any warrant or other legal process, without authority of the law, and without any reasonable cause or belief that Plaintiff was guilty of any crimes.

46. Defendants, and/or their agents, servants and/or employees, wrongfully, unlawfully, and without probable or reasonable cause, violently apprehended, handcuffed, restrained, and detained Plaintiff.

47. In addition, with full force of arms, Defendants laid hold of and compelled Plaintiff to go with certain NYPD officers and be detained at Elmhurst Hospital Center.

48. Plaintiff was wholly innocent of any criminal charges; nevertheless, he was forced by Defendants to submit to the aforesaid apprehension and detainment entirely against his will.

49. Defendants, their agents, servants, and/or employees, as set forth above, intended to confine Plaintiff. In addition, Plaintiff was conscious of the confinement, did not consent to the confinement, and the confinement was not otherwise privileged.

50. By reason of the false apprehension and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation, and ridicule.

**THIRD CAUSE OF ACTION:
ASSAULT AND BATTERY**

51. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

52. Defendants, P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO, were among the officers involved in assaulting and battering Plaintiff without probable cause, just cause, reasonable grounds, or provocation.

53. In addition, P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO

actually touched Plaintiff in a hostile, aggressive, excessive, unlawful, and offensive manner without Plaintiff's consent and with the intention of harmful or offensive bodily contact.

54. The assault and abuse of Plaintiff were caused by Defendants, their agents, servants, and/or employees without any warrant or other legal process, without authority of the law, and without any reasonable cause or belief that Plaintiff was guilty of any crime.

55. By reason of the assault and battery, Plaintiff was subjected to great indignities, humiliation, pain, suffering, and ridicule.

56. Defendants' conduct constituted assault and battery of Plaintiff, was excessive, unwarranted, unnecessary, and violent, and violated Plaintiff's rights under the Constitution of the State of New York, the Constitution of the United States of America, and 42 U.S. Code § 1983.

57. As a result of the assault and battery, Plaintiff sustained serious and permanent physical injuries.

58. Plaintiff's damages exceed the jurisdictional limits of the lower courts of the State of New York.

59. At all times herein mentioned, Defendants, CITY OF NEW YORK, P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO, owed Plaintiff a special duty beyond what was owed to the public generally, and breached this special duty by committing the acts and omissions described herein.

WHEREFORE, Plaintiff demands judgment in an amount currently believed to exceed the jurisdictional limits of all lower courts which otherwise would have jurisdiction over this matter on each Cause of Action, together with the costs and disbursements of this action.

Dated: Forest Hills, NY
August 18, 2023

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Jeremy Gorfinkel, Esq.
Attorneys for Plaintiff
MEHER KALAM
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

To:

Corporation Counsel
Attorney for Defendants
CITY OF NEW YORK, P.O. MICHAEL KENNEDY and P.O. MICHAEL SANTOBELLO
100 Church Street
New York, NY 10007
Law Dept. # 2022-069393

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

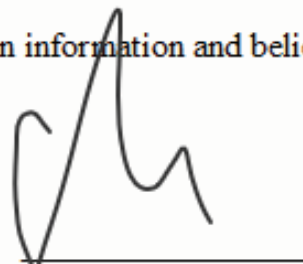
ss.:

COUNTY OF QUEENS)

I, MEHER KALAM, being duly sworn, depose and say:

- (1) I am the Plaintiff in the within action.
- (2) I have read the foregoing amended complaint and know that the contents thereof are true and accurate.

(3) As to those matters therein stated to be alleged upon information and belief, I believe them to be true.


MEHER KALAM

Sworn to before me this
17th day of August, 2023



Notary Public

JEREMY GORFINKEL
NOTARY PUBLIC - STATE OF NEW YORK
Registration No. 02GO6327968
Qualified in Nassau County
Commission Expires September 05, 2023